

PRIVACY NOTICE

W. R. Berkley Corporation Notice of Privacy Policies

For additional information about our Privacy Policies and how we collect, use, and share personal information, and to make a consumer request, please see our online Privacy Policy at: <https://www.berkley.com/privacy>.

For additional information about how we collect, use, and share and disclose personal information about California consumers' rights under the CCPA, and to make a consumer request, please see our California Consumer Privacy Policy at: <https://www.berkley.com/privacy#californiaCollectionAtNotice>.

If you would like to receive a paper copy of this Notice and/or our Privacy Policies, please contact us at (866) 915-7478.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated

AAD-2 01 20
Effective Date: 09/20/2025

"IMPORTANT NOTICE:

1. The insurance policy that you have purchased is being issued by an insurer that is not licensed by the State of California. These companies are called "nonadmitted" or "surplus line" insurers.
2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.
3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.
4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or "surplus line" broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov . Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC's internet website at www.naic.org. The NAIC—the National Association of Insurance Commissioners—is the regulatory support organization created and governed by the chief insurance regulators in the United States.
5. Foreign insurers should be licensed by a state in the United States and you may contact that state's department of insurance to obtain more information about that insurer. You can find a link to each state from this NAIC internet website: https://naic.org/state_web_map.htm .
6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on the NAIC's International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or "surplus line" broker to obtain more information about that insurer.
7. California maintains a "List of Approved Surplus Line Insurers (LASLI)." Ask your agent or broker if the insurer is on that list, or view that list at the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm .
8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker's fee charged for this insurance will be returned to you."

GEMINI INSURANCE COMPANY

A DELAWARE STOCK COMPANY

(herein called "the Company")

COMMON POLICY DECLARATIONS

Policy No.: **VIFX004350**

Renewal/Rewrite of: **VIFX003854**

Named Insured and Mailing Address

L Jones Incorporated
DBA:Jones, Logan
PO Box 80462
Bakersfield, CA 93380

Producer's Name and Address

CRC Group
1815 Via El Prado
Suite 401
Redondo Beach, CA 90277
Producer Code: C214

Policy Period: From 09/20/2025 to 09/20/2026 at 12:01 a.m. Standard Time at the address of the First Named Insured as stated herein

BUSINESS DESCRIPTION: Concrete Contractor

AUDIT PERIOD: ☐ Annual ☒ Other

IN RETURN FOR THE PAYMENT OF THE PREMIUM AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGES FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

Commercial Excess Liability	\$	18,449.00
Terrorism Coverage	\$	0.00
TOTAL PREMIUM	\$	18,449.00

Form (s) and Endorsement (s) made a part of this policy at inception.

See attached schedule:

This policy is not binding unless sealed and countersigned by Gemini Insurance Company or its Authorized Representative.

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.

Countersigned On: 9/19/2025

By:



W. Robert Berkley, Jr.
President



Philip S. Welt
Secretary

At: Greenwich, Connecticut

Administrative Office: 7233 E BUTHERUS DR SCOTTSDALE ARIZONA 85260

THESE COMMON POLICY DECLARATIONS AND, IF APPLICABLE, THE PROFESSIONAL LIABILITY DECLARATIONS, THE COMMERCIAL GENERAL LIABILITY DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART (S), FORM (S) AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBER POLICY

SEE AAD-2 01 17 - California Disclosure Notice

Broker Fee	\$1,100.00
Surplus Lines Tax:	\$553.47
Stamping Office Fee:	\$33.21
TOTAL TAX:	\$586.68

Gemini Insurance Company

475 Steamboat Rd
Greenwich, CT 06830
(herein called the company)

Policy Number: VIFX004350

Renewal/Rewrite of: VIFX003854

COMMERCIAL EXCESS LIABILITY POLICY DECLARATIONS

1. NAMED INSURED AND ADDRESS:

L JONES INCORPORATED
DBA: Jones, Logan
(PER UNDERLYING INSURANCE)
PO Box 80462
Bakersfield, CA 93380

PRODUCER'S NAME AND ADDRESS:

CRC Group
1815 Via El Prado
Suite 401
Redondo Beach, CA 90277

2. POLICY PERIOD: From: 09-20-2025

To: 09-20-2026

12:01 a.m. Standard Time at the address of the Named Insured as stated herein.

In consideration of the payment of premium, in reliance upon the statements herein or attached hereto, and subject to all of the terms of this policy, the company agrees with the Named Insured as follows:

3. PREMIUM:

Minimum Term Premium:	\$18,449.00
Minimum Earned Premium at Inception:	\$4,612.00
Optional Terrorism Premium:	\$0.00
Total Premium	
(Including Terrorism if Applicable):	\$18,449.00

4. LIMITS OF INSURANCE:

\$2,000,000	Each Occurrence
\$2,000,000	Aggregate Limit (Where Applicable)

These Limits of Insurance apply in excess of the "controlling underlying limits of insurance" indicated in Item 5. of the Declarations.

5. UNDERLYING INSURANCE: See schedule of underlying insurance

6. FORMS AND ENDORSEMENTS applicable to all Coverage Forms and made part of this policy at time of issue are listed on the attached Forms and Endorsements Schedule.

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.

Countersigned
On: 9/19/2025

By:



At: Greenwich, Connecticut

W. Robert Berkley, Jr.
President

Philip S. Welt
Secretary

SCHEDULE OF FORMS

Named Insured: L Jones Incorporated

POLICY NO.: VIFX004350

C214

FORM NUMBER	End. #	TITLE
CMNDEC 01 22		Common Declarations
FFXDEC 09 20		Follow Form Excess Liability Declarations
SCHED 07 16		Schedule of Forms
CX 00 01 04 13	01	Commercial Excess Liability Coverage Form
VX 07 11 12 18	02	Claims Reporting
VX 07 23 01 16	03	Schedule of Underlying Insurance
VX 07 16 01 16	04	Exclusion – Violation of Trade or Economic Sanctions Laws or Regulations
VX 07 10 01 16	05	Amendment of Insuring Agreement – Coverage Does Not Apply to Sublimited Exposures
VX 07 21 01 16	06	Change in Risk Exposure
CG 21 70 01 15	07	Cap on Losses From Certified Acts of Terrorism
CG 21 76 01 15	08	Exclusion of Punitive Damages Related to a Certified Act of Terrorism
TRIPRA_P 05 21	09	Disclosure of Premium And Estimated Premium For Terrorism Insurance Coverage
VX 07 12 01 16	10	Amendment to Cancellation Condition - Minimum Earned Premium at Inception
CX 21 01 09 08	11	Nuclear Energy Liability Endorsement
VE 06 85 08 21	12	Service Of Suit – California
VX 07 85 10 17	13	Exclusion – Auto Liability
VX 07 97 05 17	14	Exclusion - Employers Liability
VX 08 90 10 17	15	Amendment – Limits Of Insurance – All Coverage Subject To Aggregate Limit and No Reinstatement Of Aggregate Limit
VX 09 83 02 21	16	Exclusion - Excess Communicable Disease
VX 10 14 07 23	17	Exclusion - Biometric Information
VX 10 21 04 24	18	Exclusion - Cyber Incident
VX 10 23 07 24	19	Wrap Up and Project Specific Exclusion
VX 10 25 10 24	20	NONCONTRIBUTORY ENDORSEMENT
VX 10 27 01 25	21	Total Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS) Exclusion Endorsement

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMERCIAL EXCESS LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words "we", "us" and "our" refer to the company providing this insurance. The word "insured" means any person or organization qualifying as such under the "controlling underlying insurance".

Other words and phrases that appear in quotation marks in this Coverage Part have special meaning. Refer to Section **IV** – Definitions. Other words and phrases that are not defined under this Coverage Part but defined in the "controlling underlying insurance" will have the meaning described in the policy of "controlling underlying insurance".

The insurance provided under this Coverage Part will follow the same provisions, exclusions and limitations that are contained in the applicable "controlling underlying insurance", unless otherwise directed by this insurance. To the extent such provisions differ or conflict, the provisions of this Coverage Part will apply. However, the coverage provided under this Coverage Part will not be broader than that provided by the applicable "controlling underlying insurance".

There may be more than one "controlling underlying insurance" listed in the Declarations and provisions in those policies conflict, and which are not superseded by the provisions of this Coverage Part. In such a case, the provisions, exclusions and limitations of the "controlling underlying insurance" applicable to the particular "event" for which a claim is made or suit is brought will apply.

SECTION I – COVERAGES

1. Insuring Agreement

- a. We will pay on behalf of the insured the "ultimate net loss" in excess of the "retained limit" because of "injury or damage" to which insurance provided under this Coverage Part applies.

We will have the right and duty to defend the insured against any suit seeking damages for such "injury or damage" when the applicable limits of "controlling underlying insurance" have been exhausted in accordance with the provisions of such "controlling underlying insurance".

When we have no duty to defend, we will have the right to defend, or to participate in the defense of, the insured against any other suit seeking damages for "injury or damage".

However, we will have no duty to defend the insured against any suit seeking damages for which insurance under this policy does not apply.

At our discretion, we may investigate any "event" that may involve this insurance and settle any resultant claim or suit, for which we have the duty to defend.

But:

- (1) The amount we will pay for "ultimate net loss" is limited as described in Section **II** – Limits Of Insurance; and
 - (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under this Coverage Part. However, if the policy of "controlling underlying insurance" specifies that limits are reduced by defense expenses, our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of defense expenses, judgments or settlements under this Coverage Part.
- b. This insurance applies to "injury or damage" that is subject to an applicable "retained limit". If any other limit, such as, a sublimit, is specified in the "controlling underlying insurance", this insurance does not apply to "injury or damage" arising out of that exposure unless that limit is specified in the Declarations under the Schedule of "controlling underlying insurance".

- c. If the "controlling underlying insurance" requires, for a particular claim, that the "injury or damage" occur during its policy period in order for that coverage to apply, then this insurance will only apply to that "injury or damage" if it occurs during the policy period of this Coverage Part. If the "controlling underlying insurance" requires that the "event" causing the particular "injury or damage" takes place during its policy period in order for that coverage to apply, then this insurance will apply to the claim only if the "event" causing that "injury or damage" takes place during the policy period of this Coverage Part.
- d. Any additional insured under any policy of "controlling underlying insurance" will automatically be an additional insured under this insurance. If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance required by the contract, less any amounts payable by any "controlling underlying insurance".

Additional insured coverage provided by this insurance will not be broader than coverage provided by the "controlling underlying insurance".

2. Exclusions

The following exclusions, and any other exclusions added by endorsement, apply to this Coverage Part. In addition, the exclusions applicable to any "controlling underlying insurance" apply to this insurance unless superseded by the following exclusions, or superseded by any other exclusions added by endorsement to this Coverage Part.

Insurance provided under this Coverage Part does not apply to:

a. Medical Payments

Medical payments coverage or expenses that are provided without regard to fault, whether or not provided by the applicable "controlling underlying insurance".

b. Auto

Any loss, cost or expense payable under or resulting from any of the following auto coverages:

- (1) First-party physical damage coverage;
- (2) No-fault coverage;
- (3) Personal injury protection or auto medical payments coverage; or
- (4) Uninsured or underinsured motorists coverage.

c. Pollution

- (1) "Injury or damage" which would not have occurred, in whole or in part, but for the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of pollutants at any time.
- (2) Any loss, cost or expense arising out of any:
 - (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, pollutants; or
 - (b) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, pollutants.

This exclusion does not apply to the extent that valid "controlling underlying insurance" for the pollution liability risks described above exists or would have existed but for the exhaustion of underlying limits for "injury or damage".

d. Workers' Compensation And Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

SECTION II – LIMITS OF INSURANCE

- 1. The Limits of Insurance shown in the Declarations, and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or suits brought, or number of vehicles involved;
 - c. Persons or organizations making claims or bringing suits; or
 - d. Limits available under any "controlling underlying insurance".
- 2. The Limits of Insurance of this Coverage Part will apply as follows:
 - a. This insurance only applies in excess of the "retained limit".
 - b. The Aggregate Limit is the most we will pay for the sum of all "ultimate net loss", for all "injury or damage" covered under this Coverage Part. However, this Aggregate Limit only applies to "injury or damage" that is subject to an aggregate limit of insurance under the "controlling underlying insurance".

c. Subject to Paragraph **2.b.** above, the Each Occurrence Limit is the most we will pay for the sum of all "ultimate net loss" under this insurance because of all "injury or damage" arising out of any one "event".

d. If the Limits of Insurance of the "controlling underlying insurance" are reduced by defense expenses by the terms of that policy, any payments for defense expenses we make will reduce our applicable Limits of Insurance in the same manner.

3. If any "controlling underlying insurance" has a policy period that is different from the policy period of this Coverage Part then, for the purposes of this insurance, the "retained limit" will only be reduced or exhausted by payments made for "injury or damage" covered under this insurance.

The Aggregate Limit of this Coverage Part applies separately to each consecutive annual period of this Coverage Part and to any remaining period of this Coverage Part of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION III – CONDITIONS

The following conditions apply. In addition, the conditions applicable to any "controlling underlying insurance" are also applicable to the coverage provided under this insurance unless superseded by the following conditions.

1. Appeals

If the "controlling underlying insurer" or insured elects not to appeal a judgment in excess of the amount of the "retained limit", we may do so at our own expense. We will also pay for taxable court costs, pre- and postjudgment interest and disbursements associated with such appeal. In no event will this provision increase our liability beyond the applicable Limits of Insurance described in Section II – Limits Of Insurance.

2. Bankruptcy

a. Bankruptcy Of Insured

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this Coverage Part.

b. Bankruptcy Of Controlling Underlying Insurer

Bankruptcy or insolvency of the "controlling underlying insurer" will not relieve us of our obligations under this Coverage Part.

However, insurance provided under this Coverage Part will not replace any "controlling underlying insurance" in the event of bankruptcy or insolvency of the "controlling underlying insurer". The insurance provided under this Coverage Part will apply as if the "controlling underlying insurance" were in full effect and recoverable.

3. Duties In The Event Of An Event, Claim Or Suit

a. You must see to it that we are notified as soon as practicable of an "event", regardless of the amount, which may result in a claim under this insurance. To the extent possible, notice should include:

- (1) How, when and where the "event" took place;
- (2) The names and addresses of any injured persons and witnesses; and
- (3) The nature and location of any "injury or damage" arising out of the "event".

b. If a claim is made or suit is brought against any insured, you must:

- (1) Immediately record the specifics of the claim or suit and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or suit as soon as practicable.

c. You and any other insured involved must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or suit;
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the claim or defense against the suit; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of "injury or damage" to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

4. First Named Insured Duties

The first Named Insured is the person or organization first named in the Declarations and is responsible for the payment of all premiums. The first Named Insured will act on behalf of all other Named Insureds for giving and receiving of notice of cancellation or the receipt of any return premium that may become payable.

At our request, the first Named Insured will furnish us, as soon as practicable, with a complete copy of any "controlling underlying insurance" and any subsequently issued endorsements or policies which may in any way affect the insurance provided under this Coverage Part.

5. Cancellation

- a. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
- b. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - (1) 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - (2) 30 days before the effective date of cancellation if we cancel for any other reason.
- c. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
- d. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
- e. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
- f. If notice is mailed, proof of mailing will be sufficient proof of notice.

6. Changes

This Coverage Part contains all the agreements between you and us concerning the insurance afforded. The first Named Insured is authorized by all other insureds to make changes in the terms of this Coverage Part with our consent. This Coverage Part's terms can be amended or waived only by endorsement.

7. Maintenance Of/Changes To Controlling Underlying Insurance

Any "controlling underlying insurance" must be maintained in full effect without reduction of coverage or limits except for the reduction of aggregate limits in accordance with the provisions of such "controlling underlying insurance" that results from "injury or damage" to which this insurance applies.

Such exhaustion or reduction is not a failure to maintain "controlling underlying insurance". Failure to maintain "controlling underlying insurance" will not invalidate insurance provided under this Coverage Part, but insurance provided under this Coverage Part will apply as if the "controlling underlying insurance" were in full effect.

The first Named Insured must notify us in writing, as soon as practicable, if any "controlling underlying insurance" is cancelled, not renewed, replaced or otherwise terminated, or if the limits or scope of coverage of any "controlling underlying insurance" is changed.

8. Other Insurance

- a. This insurance is excess over, and shall not contribute with any of the other insurance, whether primary, excess, contingent or on any other basis. This condition will not apply to insurance specifically written as excess over this Coverage Part.

When this insurance is excess, if no other insurer defends, we may undertake to do so, but we will be entitled to the insured's rights against all those other insurers.
- b. When this insurance is excess over other insurance, we will pay only our share of the "ultimate net loss" that exceeds the sum of:
 - (1) The total amount that all such other insurance would pay for the loss in the absence of the insurance provided under this Coverage Part; and
 - (2) The total of all deductible and self-insured amounts under all that other insurance.

9. Premium Audit

- a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.

- b. If this policy is auditable, the premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period, we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit premium is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.
- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

10. Loss Payable

Liability under this Coverage Part does not apply to a given claim unless and until:

- a. The insured or insured's "controlling underlying insurer" has become obligated to pay the "retained limit"; and
- b. The obligation of the insured to pay the "ultimate net loss" in excess of the "retained limit" has been determined by a final settlement or judgment or written agreement among the insured, claimant, "controlling underlying insurer" (or a representative of one or more of these) and us.

11. Legal Action Against Us

No person or organization has a right under this Coverage Part:

- a. To join us as a party or otherwise bring us into a suit asking for damages from an insured; or
- b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured, "controlling underlying insurer" and the claimant or the claimant's legal representative.

12. Transfer Of Defense

a. Defense Transferred To Us

When the limits of "controlling underlying insurance" have been exhausted, in accordance with the provisions of "controlling underlying insurance", we may elect to have the defense transferred to us. We will cooperate in the transfer of control to us of any outstanding claims or suits seeking damages to which this insurance applies and which would have been covered by the "controlling underlying insurance" had the applicable limit not been exhausted.

b. Defense Transferred By Us

When our limits of insurance have been exhausted our duty to provide a defense will cease.

We will cooperate in the transfer of control of defense to any insurer specifically written as excess over this Coverage Part of any outstanding claims or suits seeking damages to which this insurance applies and which would have been covered by the "controlling underlying insurance" had the applicable limit not been exhausted.

In the event that there is no insurance written as excess over this Coverage Part, we will cooperate in the transfer of control to the insured and its designated representative.

13. When We Do Not Renew

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION IV – DEFINITIONS

The definitions applicable to any "controlling underlying insurance" also apply to this insurance. In addition, the following definitions apply.

1. "Controlling underlying insurance" means any policy of insurance or self-insurance listed in the Declarations under the Schedule of "controlling underlying insurance".
2. "Controlling underlying insurer" means any insurer who provides any policy of insurance listed in the Declarations under the Schedule of "controlling underlying insurance".
3. "Event" means an occurrence, offense, accident, act, or other event, to which the applicable "controlling underlying insurance" applies.
4. "Injury or damage" means any injury or damage, covered in the applicable "controlling underlying insurance" arising from an "event".

5. "Retained limit" means the available limits of "controlling underlying insurance" applicable to the claim.
6. "Ultimate net loss" means the total sum, after reduction for recoveries, or salvages collectible, that the insured becomes legally obligated to pay as damages by reason of:
 - a. Settlements, judgments, binding arbitration; or
 - b. Other binding alternate dispute resolution proceeding entered into with our consent.

"Ultimate net loss" includes defense expenses if the "controlling underlying insurance" specifies that limits are reduced by defense expenses.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number 2

VX 07 11 12 18

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CLAIMS REPORTING

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

Section III – Conditions, 3. Duties In The Event Of An Event, Claim Or Suit is amended to include **3.e.** as follows:

- e. In the event of any “event” that may result in a claim against this policy, or a claim or suit is brought against any insured, the insured must immediately report such “event”, claim or suit to:

Vela Insurance Services, a Berkley Company

Claims Department

11516 Nicholas Street, Suite 301

Omaha, NE 68154

TELEPHONE: (866) 915-7478 or (402) 492-8352

FAX: (402) 492-3283

EMAIL: claims@vela-ins.com

ONLINE: <https://www.vela-ins.com/FirstNoticeOfLoss>

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 3

VX 07 23 01 16
Effective Date: 9/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SCHEDULE OF CONTROLLING UNDERLYING INSURANCE

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

Controlling Underlying Insurance:		
Coverage / Carrier / Policy Period	Limits	Premium
CONTROLLING UNDERLYING POLICY Coverage: CGL - Occurrence Company: Gemini Insurance Company Policy Number: VIGP031668 Policy Period: 9/20/2025 - 9/20/2026	\$1,000,000Each Occurrence \$2,000,000Products/Completed Operations Aggregate \$2,000,000General Aggregate \$1,000,000Personal & Advertising Injury Limit	\$42,595
	Comments:	

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 4

VX 07 16 01 16
Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – VIOLATION OF TRADE OR ECONOMIC SANCTIONS LAWS OR REGULATIONS

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

We shall not be liable to provide coverage, pay any claim or provide any benefit hereunder to the extent that the provisions of such coverage, payment of such claim or provisions of such benefit would be in violation of any trade or economic sanctions law or regulation applicable to our jurisdiction of domicile or those of another jurisdiction with which we are legally obligated to comply.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 5

VX 07 10 01 16
Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDMENT OF INSURING AGREEMENT – COVERAGE DOES NOT APPLY TO SUBLIMITED EXPOSURES

This endorsement modifies insurance provided under the following:
Commercial Excess Liability

Paragraph **1.b.** under the **Insuring Agreement** of **SECTION I – COVERAGES** is deleted and replaced by the following:

1. Insuring Agreement

- b.** This insurance applies to “injury or damage” that is subject to an applicable “retained limit”. If any other limit, such as, a sublimit, is specified in the “controlling underlying insurance”, this insurance does not apply to “injury or damage” arising out of the exposure.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 6

VX 07 21 01 16
Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CHANGE IN RISK EXPOSURE

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

The Total Premium shown in the Declarations is not subject to premium audit and is non-adjusting unless there is an increase in exposure or change in risk during the policy period that is the result of any one or more of the following:

1. The Named Insured's acquisition of any other entity or acquisition of at least 50.1% of the assets of another entity;
2. The Named Insured's merger with any other entity;
3. The Named Insured's creation of a new subsidiary; and/or
4. In the sole judgment of the Company, the Named Insured materially changes its business from what was described in the application for insurance.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

- A.** If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.
- "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:
- 1.** The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 - 2.** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
- B.** The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF PUNITIVE DAMAGES RELATED TO A CERTIFIED ACT OF TERRORISM

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

A. The following exclusion is added:

This insurance does not apply to:

TERRORISM PUNITIVE DAMAGES

Damages arising, directly or indirectly, out of a "certified act of terrorism" that are awarded as punitive damages.

B. The following definition is added:

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

- C.** The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 9

TRIPRA_P 05 21

Effective Date: 09/20/2025

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF YOUR POLICY IN RESPONSE TO THE DISCLOSURE REQUIREMENTS OF THE TERRORISM RISK INSURANCE ACT. THIS ENDORSEMENT DOES NOT GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

DISCLOSURE OF PREMIUM FOR TERRORISM INSURANCE COVERAGE

Commercial Excess Liability

Coverage for acts of terrorism, as defined in the Terrorism Risk Insurance Act, as amended, (the "Act"), is included in your policy. As defined in Section 102(1) of the Act: The term "act of terrorism" means any act that is certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. Under your coverage, any losses resulting from certified acts of terrorism may be partially reimbursed by the United States Government under a formula established by the Act. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 80% beginning on January 1, 2020 of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage. The Act contains a \$100 billion cap that limits U.S. Government reimbursement as well as insurers' liability for losses resulting from certified acts of terrorism when the amount of such losses exceeds \$100 billion in any one calendar year. If the aggregate insured losses for all insurers exceed \$100 billion, your coverage may be reduced.

Premium

The portion of your annual premium that is attributable to coverage for acts of terrorism, as defined in the Act is \$0, and does not include any charges for the portion of losses covered by the United States government under the Act.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 10

VX 07 12 01 16
Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDMENT TO CANCELLATION CONDITION MINIMUM EARNED PREMIUM AT INCEPTION

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

Paragraph **5. Cancellation** of **SECTION III – CONDITIONS** is deleted and replaced by the following:

5. Cancellation

- a. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
- b. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - (1) 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - (2) 30 days before the effective date of cancellation if we cancel for any other reason.
- c. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
- d. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
- e. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. However, in no event shall we retain less than the Minimum Earned Premium at Inception. The cancellation will be effective even if we have not made or offered a refund.
- f. If notice is mailed, proof of mailing will be sufficient proof of notice.

NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT (BROAD FORM)

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

The following exclusion is added to Paragraph 2.,
Exclusions:

2. Exclusions

NUCLEAR ENERGY LIABILITY

a. Under any Liability Coverage, to "injury or damage":

(1) With respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or

(2) Resulting from the "hazardous properties" of "nuclear material" and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (b) the insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

b. Under any Liability Coverage, to "injury or damage" resulting from "hazardous properties" of "nuclear material", if:

(1) The "nuclear material" (a) is at any "nuclear facility" owned by, or operated by or on behalf of, an insured or (b) has been discharged or dispersed therefrom;

(2) The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an insured; or

(3) The "injury or damage" arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this Exclusion (3) applies only to property damage to such "nuclear facility" and any property thereat.

c. As used in this endorsement:

"Hazardous properties" includes radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material **(a)** containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and **(b)** resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

- (a)** Any "nuclear reactor";
- (b)** Any equipment or device designed or used for **(1)** separating the isotopes of uranium or plutonium, **(2)** processing or utilizing "spent fuel", or **(3)** handling, processing or packaging "waste";
- (c)** Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the "insured" at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
- (d)** Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Injury or damage" includes all forms of radioactive contamination of property.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 12

VE 06 85 08 21
Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT – CALIFORNIA

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

Pursuant to any statute of any state, territory or district of the United States which makes provision therefore, the Company hereby designates the Superintendent, Commissioner or Director of Insurance or other Officer specified for that purpose in the Statute, or his successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of you or any beneficiary hereunder arising out of this contract of insurance, and hereby designates the below named as the person to whom the said Officer is authorized to mail such process or a true copy thereof.

The Company may be sued upon any cause of action arising in the State of California upon any policy issued by it, or any evidence of insurance issued or delivered by a surplus lines broker, pursuant to the procedures of Sections 1610 to 1620 of the Insurance Code. Nothing herein shall constitute a selection or designation of forum, or a waiver of any of our rights to select a forum or court, including any of the federal courts of the United States. This includes any right to commence an action in or remove or transfer an action to the United States District Court or any other court of competent jurisdiction, as permitted by law.

It is further agreed that service of process in such suit may be made upon Amanda Garcia, in care of CT Corporation System, 330 N Brand Boulevard, Glendale, CA 91203-2336, and that in any suit instituted against the Company upon this policy, it will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 13

VX 07 85 10 17

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – AUTO LIABILITY

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

The following exclusion is added to **Section I – Coverages**, Paragraph **2. Exclusions**:

2. Exclusions

Insurance provided under this Coverage Part does not apply to:

“Injury or damage” arising out of the ownership, maintenance, operation, use, loading or unloading, or entrustment to others of any auto.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 14

VX 07 97 05 17
Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – EMPLOYER’S LIABILITY

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

The following exclusion is added to Paragraph **2. Exclusion**, of **Section 1- Coverages**:

2. Exclusions

This insurance does not apply to “injury or damage” to:

Employer’s Liability

- (1)** An “employee” of the insured arising out of and in the course of:
 - (a)** Employed by the insured; or
 - (b)** Performing duties related to the conduct of the insured’s business; or
- (2)** The spouse, child, parent, brother or sister of that employee as a consequence of Paragraph **(1)** above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of injury.

This exclusion does not apply to liability assumed by the insured under an “insured contract”.

All other terms and conditions of the Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 15

VX 08 90 10 17

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**AMENDMENT – LIMITS OF INSURANCE – ALL COVERAGE
SUBJECT TO AGGREGATE LIMIT AND NO REINSTATEMENT
OF AGGREGATE LIMIT**

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

Section II – Limits Of Insurance is amended as follows:

A. Paragraph **2.b.** is deleted in its entirety and replacing it with the following:

b. The Aggregate Limit is the most we will pay for the sum of all "ultimate net loss", for all "injury or damage" covered under this Coverage Part.

B. The following paragraph at the end of **Section II – Limits Of Insurance** is deleted:

The Aggregate Limit of this Coverage Part applies separately to each consecutive annual period of this Coverage Part and to any remaining period of this Coverage Part of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

The following paragraph replaces the paragraph deleted above:

The Aggregate Limit of this Coverage Part applies over the entire term of the policy period, even if the policy period is greater than 12 months, and even if a policy period extension or any other extension provided.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 16

VX 09 83 02 21

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – COMMUNICABLE DISEASE

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

A. The following exclusion is added to Paragraph 2. Exclusions of Section I – Coverages:

2. Exclusions

Insurance provided under this Coverage Part does not apply to:

Communicable Disease

"Injury or damage" arising out of or related to a "communicable disease." This exclusion applies to all claims and suits regardless of whether the "communicable disease" is transmitted, symptomatic, manifest, or causes apparent harm, injury, or damage.

This exclusion applies even if the claim or suit alleges negligence or other wrongdoing in:

- (1)** Supervising, hiring, employing, training or monitoring of others that may be infected with or spread a "communicable disease";
- (2)** Testing, failing to test, or delaying testing for a "communicable disease";
- (3)** Failure to prevent the spread of a "communicable disease";
- (4)** Failure to report a "communicable disease" to authorities; or
- (5)** Cleaning, clearing, closing, maintenance, or inspection of any premises.

B. The following definition is added to Section IV – Definitions:

"Communicable disease" refers to and includes any disease, infection, sickness, illness, condition, disorder or syndrome, whether symptomatic or dormant, and whether temporary or permanent, that is or is capable of being transmitted to or from a person or animal, through any source, including but not limited to transmission through bacteria, viruses, yeasts, spores, mycotoxins, or any pathogen.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 17

VX 10 14 07 23

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – BIOMETRIC INFORMATION

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

A. The following exclusion is added to Paragraph **2. Exclusions** of **Section I – Coverages**:

2. Exclusions

The following exclusions, and any other exclusions added by endorsement, apply to this Coverage Part. In addition, the exclusions applicable to any "controlling underlying insurance" apply to this insurance unless superseded by the following exclusions, or superseded by any other exclusions added by endorsement to this Coverage Part.

Insurance provided under this Coverage Part does not apply to:

Biometric Information

"Bodily Injury", "Property Damage", "Personal and Advertising Injury", damages, costs, and expenses, either directly or indirectly because of, caused by or arising out of:

- a) the actual or alleged collection, use, access, safeguarding, sharing, storage, retention, conversion, disclosure, sale, disposal, transmitting, distributing, or destruction of any "Biometric identifiers" or "Biometric information", or failure to obtain consent for any of the foregoing; or
- b) a claim, investigation, demand, "suit" or proceeding involving an actual or alleged invasion of privacy or violation of a right to privacy and a "Biometric identifiers" or "Biometric information"; or
- c) an actual or alleged violation of any privacy law, including the Illinois Biometric Information Privacy Act (BIPA), the California Consumer Privacy Act (CCPA), the California Privacy Rights Act (CPRA), EU General Data Protection Regulation (GDPR) or any other similar law, ordinance, regulation, or statute anywhere in the world that governs or relates to the collection, use, access, safeguarding, sharing, storage, retention, conversion, disclosure, sale, disposal, transmitting, distributing, or destruction of any "Biometric identifiers" or "Biometric information" or obtaining consent for any of the foregoing.

The exclusions above apply regardless of any insured's culpability or intent and regardless of whether the claim, investigation, demand, "suit", proceeding or allegation against any insured alleges negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by any insured.

B. The following definitions are added to **Section IV – Definitions:**

“Biometric identifiers” means any physical, genetic, physiological, biological, or behavioral characteristic or attribute that allows an individual to be identified. Without limiting the foregoing, “biometric identifiers” includes but is not limited to the following: (a) retina or iris scan; (b) fingerprint; (c) voiceprint; (d) DNA; (e) finger, hand, or palm scan; (f) scan of hand or face geometry; (g) vein patterns; (h) voice recordings; (i) keystroke patterns or rhythms; (j) gait patterns or rhythms; (k) sleep, health, or exercise data that contain identifying information; or (l) any other biometric algorithm or measurement of (a) through (k) or any other physical, genetic, physiological, biological or behavioral characteristic or attribute which allows an individual to be identified.

“Biometric information” means any information, regardless of how it is captured, converted, stored, or shared, that is based on, or includes, any “biometric identifiers”.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 18

VX 10 21 04 24

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – CYBER INCIDENT

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

A. The following is added to Paragraph **2. Exclusions** of **Section I – Coverages**:

2. Exclusions

Insurance provided under this Coverage Part does not apply to:

Cyber Incident

"Injury or damage" arising out of a "cyber incident".

This exclusion applies even if damages are claimed for notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other similar cost or expense incurred by you or others arising out of a "cyber incident".

B. For the purpose of this endorsement, the following definition is added to **Section IV- Definitions**:

"Cyber incident" means any:

1. Unauthorized access to or use of any computer system.
2. Malicious code, virus or any other harmful code that is directed at, enacted upon or introduced into any computer system and is designed to access, alter, corrupt, damage, delete, destroy, disrupt, encrypt, exploit, use or prevent or restrict access to or the use of any part of any computer system or otherwise disrupt its normal functioning or operation.
3. Denial of service attack which disrupts, prevents or restricts access to or use of any computer system, or otherwise disrupts its normal functioning or operation.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 19

VX 10 23 07 24

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WRAP UP AND PROJECT SPECIFIC EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

The following exclusions are added to paragraph 2., **Exclusions of Section I – Coverages:**

- This insurance does not apply to construction projects done by you or on your behalf, at or away from the construction project site, if a consolidated (wrap-up) insurance program has been provided by the prime contractor, project manager or project owner for that construction project.

This exclusion applies whether or not the consolidated (wrap-up) insurance program:

- (1) Includes you, or anyone working on your behalf, as an enrolled contractor or subcontractor;
- (2) Provides coverage identical to that provided by this Coverage Part;
- (3) Has limits adequate to cover all claims; or
- (4) Remains in effect at the time of any loss.

- This insurance does not apply to construction projects done by you or on your behalf, at or away from the construction project site, if a project specific insurance program has been provided for “your work” or operations for that construction project.

This exclusion applies whether or not the project specific insurance program:

- (1) Provides coverage identical to that provided by this Coverage Part;
- (2) Has limits adequate to cover all claims; or
- (3) Remains in effect at the time of any loss.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 20

VX 10 25 10 24

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NONCONTRIBUTORY ENDORSEMENT

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

Paragraph 8. of **Section III – Conditions** is replaced by the following:

8. Other Insurance

- a. This insurance is excess over, and shall not contribute with other insurance, whether primary, excess, contingent or on any other basis. However:
 - (1) This condition will not apply to other insurance specifically written as excess over this Coverage Part.
 - (2) Coverage under this policy will be primary to, and will not seek contribution from, any other Commercial General Liability insurance or Commercial Excess Liability insurance available to an additional insured, but only if:
 - (a) The additional insured is a Named Insured under such other insurance;
 - (c) The "controlling underlying insurance" provides primary and non-contributory coverage to the same additional insured; and
 - (d) You have agreed in writing in a contract or agreement that this insurance would be primary to, and would not seek contribution from, such other insurance.
- b. When this insurance is excess, if no other excess insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all other insurers.
- c. When this insurance is excess, the most we will pay will be a share of "ultimate net loss" that exceeds the sum of:
 - (1) The total amount that all other insurance would pay for the loss in the absence of the insurance provided under this Coverage Part; and
 - (2) The total of all deductible and self-insured amounts under all other insurance.

Notwithstanding any part of this endorsement, coverage granted to an additional insured remains subject to all terms, conditions, limitations, and exclusions set forth in the endorsement form that conferred the additional insured status.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VIFX004350
Insured Name: L Jones Incorporated
Number: 21

VX 10 27 01 25

Effective Date: 09/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**TOTAL PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES
(PFAS) EXCLUSION ENDORSEMENT**

This endorsement modifies insurance provided under the following:

Commercial Excess Liability

A. The following exclusion is added to **Paragraph 2. Exclusions of Section I – Coverages:**

2. Exclusions

This insurance does not apply to:

PFAS

- i. "Injury or damage", medical expenses, damages (including but not limited to punitive damages or exemplary damages), loss, penalties, fines, fees, costs or expenses, or any other relief, of any kind whatsoever; and/or
- ii. any claim, demand, obligation, request, investigation, notice, order, action, settlement, consent decree, agreement, remediation program, suit, or proceeding, of any kind whatsoever, including but not limited to civil, criminal, administrative, or regulatory, brought by or on behalf of a "Governmental Authority", natural person, business, organization, or other entity;

actually or allegedly, and directly or indirectly, arising from or out of, caused by, based upon, attributable to, related to, contributed to by, or in any way involving, in whole or in part:

- a) "PFAS", including but not limited to any actual, alleged, threatened, potential, or suspected:
 - i. breach of duty, breach of standard of care, act, error, omission, failure to properly act, failure to properly perform any service or professional service, or a violation of any law, statute or regulation in relation to "PFAS";
 - ii. inhalation, ingestion, absorption, consumption, discharge, dispersal, handling, testing, flaking, leakage, leaching, friability, migration, seepage, release of, escape of, contact with, exposure to, existence of, or presence of "PFAS";
 - iii. use, including but not limited to any mandated, sanctioned, authorized, permitted or suggested use, development, manufacture, production, processing, incorporation, packaging, design, distribution, sale, resale, re-branding, handling, transport, replacement, marketing, or advertising of "PFAS" or anything containing "PFAS"; or
 - iv. warnings, notices, or instructions regarding "PFAS" or anything containing "PFAS", or failure to provide warnings, notices, or instructions regarding "PFAS" or anything containing "PFAS";

- b) investigating, abating, testing for, monitoring for, cleaning up, removing, containing, studying, remediating, mitigating, disposing of, treating, detoxifying, neutralizing, or in any way responding to, addressing, or assessing “PFAS” and/or the actual, alleged, threatened, potential, or suspected effects or presence of “PFAS”, whether in the environment, on property, in a human, animal, or any other living or non-living thing or otherwise; or
- c) warranties or representations made at any time regarding “PFAS” or anything containing “PFAS”, including but not limited to the safety, fitness, quality, durability, performance, toxicity, or environmental persistence of “PFAS” or anything containing “PFAS”, or warranties or representations made at any time regarding anything described in A.2.(a) or A.2.(b) above.

The foregoing provisions apply:

- a) regardless of whether any other cause, event, material, substance, compound, good, or product (including but not limited to “your product”), contributed concurrently or in any sequence to any “injury or damage”, medical expenses, damages (including but not limited to punitive damages or exemplary damages), loss, penalties, fines, fees, costs or expenses, or any other relief, of any kind whatsoever;
- b) to any obligations assumed by you or any other insured under an “insured contract” or any other agreement;
- c) regardless of whether the “products-completed operations hazard” applies;
- d) regardless of whether there was a permit, authorization, or requirement to use “PFAS”, incorporate “PFAS” into your product, or release “PFAS” into the environment, or whether any use, incorporation, or release was legally permissible or in compliance with permissible levels set by a “Governmental Authority”;
- e) to any workplace exposure or occupational exposure to “PFAS” or occupational disease actually or allegedly attributable to “PFAS”; and
- f) to preclude coverage for the entire claim, demand, obligation, request, investigation, notice, order, action, settlement, consent decree, agreement, remediation program, suit, or proceeding, when only a portion of the foregoing involves or concerns “PFAS” or anything containing “PFAS”, even if any other portion would have been covered under this Policy or a duty to defend would have been owed in the absence of “PFAS”.

B. The following definition is added to **Section VI – Definitions:**

1. “PFAS” means:

- (a) Any fluorinated chemical containing at least one fully or partially fluorinated carbon atom, whether polymer or non-polymer, including but not limited to: any perfluoroalkyl and polyfluoroalkyl substances, perfluoroalkyl acid(s), perfluorooctanesulfonic acid(s), perfluoroalkane, hexafluoropropylene oxide-dimer acid(s), perfluorobutanesulfonic acid(s), perfluorohexanesulfonic acid(s), perfluoroalkane sulfonamides, perfluoroalkyl ether carboxylic acid(s) (including, without limitation, perfluoro-butanoic, perfluoro-hexanoic, perfluoro-octanoic, perfluoro-nonanoic, and perfluoro-decanoic acids), fluorotelomer substances, perfluoroalkane sulfonamide substances, perfluoroalkane sulfonyl fluorides, perfluorodecane sulfonate, ammonium perfluorooctanoate, perfluoroalkyl iodides, per- and polyfluoroalkyl ether-based substances,

fluoropolymers, side-chain fluorinated polymers, perfluoropolyethers, perfluorosulfonic acid salts, perfluorosulfonate salts, perfluorocarboxylic acid salts, perfluorocarboxylate salts, all of the foregoing by whatever names known, including but not limited to chemical names, trade names (e.g., “GenX” or “ADONA”), or any other name or descriptor (e.g., “C8”);

- (b) Any chemical now or in the future related or similar to the items contained in B.1.(a), including but not limited to those identified in (i) any of the U.S. Environmental Protection Agency’s chemical lists, (ii) any list of per- and polyfluoroalkyl substances subject to toxic chemical release reporting under section 313 of the U.S. Emergency Planning and Community Right to Know Act (“EPCRA”), 42 U.S.C. § 11001 et seq., including those now or in the future listed in 40 C.F.R. § 372.65, or (iii) any statute, law, regulation, rule or written proposed rule, guidance document, list, or bulletin issued, adopted, or maintained by any “Governmental Authority”;
 - (c) Any polymers, oligomers, monomers, non-polymer chemicals, homologues, isomers, telomers, salts, esters, alcohols, acids, precursors, degradants, derivatives, and breakdown products or by-products associated with any chemical or substance described in paragraphs B.1.(a) or B.1.(b) of this definition; or
 - (d) Any good, product, substance, mixture, food, liquid, supplement, and/or medication, including containers, materials, parts, equipment, or packaging furnished in connection with such good, product, substance, mixture, food, liquid, supplement, and/or medication, that consists of or contains anything described in paragraphs B.1.(a), B.1.(b), or B.1.(c) of this definition.
2. “Governmental Authority” means any national, domestic, international, foreign, federal, state, provincial, local, or tribal government or other political subdivision thereof, whether within or outside the United States, and any agency, body, unit, entity, or any other instrumentality thereof, exercising executive, legislative, judicial, regulatory, or administrative functions of government.

All other terms and conditions of this Policy remain unchanged.